Privacy Policy

In addition to the terms of use in these pages, a Privacy Policy is also incorporated into this Agreement. The Privacy Policy sets out what information we obtain from Users and what we do with it.

Consent

In addition to the terms of use in these pages, an Informed Consent document is also incorporated into this Agreement. The Informed Consent document sets out the risks and benefits of using the Service.

Telehealth involves the delivery of health care services using electronic communications, information technology or other means between a healthcare provider and a patient who are not in the same physical location at the time of care. While the provision of health services using telehealth may offer certain potential benefits, there are also potential risks associated with doing so. The telehealth services are not a substitute for in-person care in all cases. In order to use the Service, you will be required to review and agree to an informed consent document regarding the use of telehealth (the "Patient Consent") that is a part of this Terms of Use and Privacy Policy.

Suitability of Telemedicine

In some cases, the Service may not be the most appropriate way for you to provide information to, communicate with, or seek medical care and treatment from a healthcare provider. For example, certain medical conditions may require an in-person evaluation or procedure or a healthcare provider other than your Provider, or your Provider may determine that your diagnosis and/or treatment requires an in-person office visit or is otherwise not appropriately addressed through use of the Service. In such a case, you may receive notification that you will be unable to use the Service for the particular problem you have expressed concern about and additional information regarding next steps.

Your Representations

By visiting, accessing, registering with or using the Service, you are (a) representing and warranting to us that you are either at least eighteen (18) years of age or older or at least the age of majority in your jurisdiction of residence, if higher than eighteen.

You also represent and warrant to us that when you use the Service to consult with a Provider, (i) you are located in the same state as the shipping address you provide in your account at the time that you conduct such consultation; (ii) you are submitting truthful and accurate information; (iii) you are updating your information to maintain the accuracy of such information on an ongoing basis; and (iv) you are providing or obtaining only your own information or the information of others that you are authorized to provide to third parties and/or obtain from third parties on their behalf.

Your Relationship with the Pharmacy

We make available to Users certain products and services sold or offered by Sips that Spike or by pharmacies via our Service. Our Service provides access to prescription fulfillment services offered by the following pharmacy: Empower Pharmacy, 7601 North Sam Houston Pkwy W., Ste 100, Houston, Texas 77064 (the "Pharmacy"). By accepting this Agreement, you acknowledge and agree that any services you receive from the Pharmacy through the Service are also subject to this Agreement, and that the Pharmacy is a third-party beneficiary of this Agreement. We do not control or interfere with any professional service provided by the Pharmacy, which is solely responsible for its provision of professional services rendered via the Service. By using the Service, you are establishing a direct customer relationship with the Pharmacy, including the purchase of any prescription or non-prescription products sold directly to you by the Pharmacy via the Service.

Reimbursement

Sips that Spike is not enrolled with, and is not a participating provider with, any federal or state healthcare programs (Medicare, Medicaid, e.g.), nor with any commercial health insurers (Cigna, Aetna, e.g.) for the provision of any health care or supplies and, as such, neither you nor Sips that Spike may receive payment from such programs for the services or products provided to you by or through Sips that Spike or Pharmacy. Further, to the extent that the Pharmacy may be enrolled in federal or state healthcare programs, the means through which the services and products are provided or made accessible through the

Service typically precludes such services and products from being covered benefits under these programs and health insurance policies. By choosing to use the Service, you are specifically choosing to obtain products and services on a cash basis outside of any federal or state healthcare program or health insurance policy. Thus, you are solely responsible for the costs of any service or product provided to you through the Service.

By agreeing to use the Service, you acknowledge and agree that (1) you are explicitly choosing to obtain products and services on a cash basis outside of any federal or state healthcare program or health insurance policy and you have sole financial responsibility for all services or products provided to you by or through the Service, and (2) neither you nor Sips that Spike nor the Pharmacy will submit a claim for reimbursement to any federal or state healthcare program or health insurance company for the costs of the services and products provided to you through the Service.

Prescription Products

Certain products available through the Service require a valid prescription by a licensed healthcare provider affiliated with the Service (a "Provider"). You will not be able to obtain a prescription product unless you have completed a consultation with one of the Providers, the Provider has determined the prescription product is appropriate for you, and the Provider has written you a prescription.

If a Provider determines a prescription product is appropriate for you and writes a prescription, you will receive information about your options for filling the prescription. Certain prescriptions can be filled through the Pharmacy by using the Service, or you may fill the prescription at any pharmacy of your choice as prompted during your use of the Service or emailing Orders@dermtodoor.com.

Some prescriptions may not be available through the Pharmacy or must be filled by a local pharmacy of your choice as prompted during your use of the Service, including some prescriptions used for common skin conditions.

If you complete a consultation with a Provider and fill a prescription through the Pharmacy, the prescription product will be shipped to you by the Pharmacy. Your payment device will be charged for that product during the checkout process. If you fill a prescription with a

pharmacy other than the Pharmacy, the Service will send the prescription to your selected pharmacy, but you will be responsible for picking up or otherwise obtaining the prescription product and paying your pharmacy directly for the cost of the prescription product.

Prescription products available through the Service are "Third-Party Goods and Services" as described in the Third-Party Goods and Services section of this Agreement.

Duty to Provide Information, Access, and Connectivity

You are responsible for providing and maintaining, at your own risk, option and expense, appropriate software and hardware capabilities (consistent with any technical, quality or other requirements described in the Service) to enable use of the Service, including but not limited to, a computer or mobile device with a video camera and Internet access. You are solely responsible for any fees, including Internet connection or mobile fees, that you incur when accessing the Service. You also have a duty to provide truthful, accurate and complete information in any forms or other communications you submit to or through the Service. We reserve the right to change the access configuration, including any software, hardware or other requirements of the Service at any time without prior notice.

Registration; User Accounts, Passwords, and Security

You are obligated to register and set up an account in the Service to access the Service, and the Service is available only to Users who have registered and have been granted accounts with usernames and passwords. You agree to accurately maintain and update any information about yourself that you have provided to Sips that Spike or the Pharmacy. If you do not keep such information current, or fail to submit truthful, accurate and complete information, or we have reasonable grounds to suspect as much, we have the right to suspend or terminate your account and your use of the Service. You also agree to immediately notify Sips that Spike of any unauthorized use of your username, password, or any other breach of security that you become aware of involving or relating to the Service by emailing Sips that Spike at Orders@Dermtodoor.com. In addition, you agree to keep confidential your username and password and to exit from your User account at the end of each session. YOU AGREE THAT WE SHALL HAVE NO LIABILITY FOR THE UNAUTHORIZED USE OF YOUR ACCOUNT. You may not use anyone else's account at any time.

When establishing an account, you will be required to provide a username and password that will be used as your login for your account. To help protect the privacy of data you transmit through the Service, where personally identifiable information is requested, we also use technology designed to encrypt the information that you input before it is sent to us by using Secure Sockets Layer (SSL) technology or similar encryption technology provided through Shopify, Inc., an e-commerce company headquartered in Ottawa, Canada. Sips that Spike's relationship with Shopify, if any, is merely contractual in nature, as Shopify is nothing more than a third-party vendor to Sips that Spike and is in no way subject to Sips that Spike's direction or control; thus, their relationship is not, and should not be construed as, one of fiduciaries, franchisors-franchisees, agents-principals, employers-employees, partners, joint venturers or the like.

In addition, we take steps to protect the User data we collect against unauthorized access. You should keep in mind, however, that the Service and our services are run on software, hardware, and networks, any component of which may, from time to time, require maintenance or experience problems or breaches of security beyond our control. In addition, persons with access to your computer, phone, or other mobile or other devices may be able to access the Service and information about you, including medical information, contained in the Service. It is your responsibility to affirmatively logout from your account when you are not actively using it. It is also your responsibility to secure and prevent unauthorized physical access to your computer, phone, and other devices, and to protect the confidentiality of your username and password. We will not be responsible or liable for any loss or damage that results from your failure to comply with these security obligations.

You must exercise caution, good sense, and sound judgment in using the Service. You are prohibited from violating, or attempting to violate, the security of the Service. Any such violations may result in criminal and/or civil penalties against you. Sips that Spike may investigate any alleged or suspected violations and, if a criminal violation is suspected, Sips that Spike may cooperate with law enforcement agencies in their investigations.

Use and Ownership of the Service

The Service and the information and content available through the Service are protected by copyright laws throughout the world. Subject to this Agreement, Sips that Spike grants you a limited, non-transferable, revocable license to access and use the Service for your personal, noncommercial use. Unless otherwise specified by Sips that Spike in a separate license, your right to use any of the Service or its content is subject to this Agreement and all rights in the Service and its content are reserved by Sips that Spike. You agree that Sips that

Spike and its suppliers own all rights, title, and interest in the Service (including but not limited to, any computer code, themes, objects, concepts, photographs, videos, product descriptions, blog posts, artwork, animations, sounds, musical compositions, audiovisual effects, methods of operation, moral rights, and documentation). You will not remove, alter, or obscure any copyright, trademark, service mark or other proprietary rights notices incorporated in or accompanying the Service. Sips that Spike's stylized name and other related graphics, logos, service marks and trade names used on or in connection with the Service are the trademarks of Sips that Spike and may not be used without permission, including in connection with any third-party products or services. Other trademarks, service marks and trade names that may appear on or in the Service are the property of their respective Sips that Spikes.

Prohibited Uses

You are prohibited from using or attempting to use the Service (i) for any unlawful, unauthorized, fraudulent or malicious purpose, (ii) in any manner that could damage, disable, overburden, or impair any server, or the network(s) connected to any server, (iii) in any manner that could interfere with any other party's use or enjoyment of the Service, (iv) to gain unauthorized access to any other accounts, computer systems, or networks connected to any server or systems through hacking, password mining or any other means, (v) to access systems, data, or information not intended by Sips that Spike to be made accessible to a User, (vi) to obtain any materials, or information through any means not intentionally made available by Sips that Spike, (vii) to reverse engineer, disassemble or decompile any section or technology on the Service, or (viii) for any use other than the business purpose for which it was intended.

In addition, in connection with your use of the Service, you agree you will not: (a) upload or transmit any message, information, data, text, software or images, or other content that is unlawful, harmful, threatening, abusive, harassing, tortious, defamatory, vulgar, obscene, libelous, or inappropriate with respect to race, gender, sexuality, ethnicity, or other intrinsic characteristic, or that may invade another's right of privacy or publicity; (b) create a false identity or duplicative accounts for the purpose of misleading others or to impersonate any person or entity, including, without limitation, any Sips that Spike representative, or falsely state or otherwise misrepresent your affiliation with a person or entity; (c) upload or transmit any material that you do not have a right to reproduce, display or transmit under any law or under contractual or fiduciary relationships (such as nondisclosure agreements), or upload or transmit any material that infringes any patent, trademark, service mark, trade secret, copyright or other proprietary rights of any party; (d) upload files that contain viruses, trojan horses, worms, time bombs, cancel-bots, corrupted files, spyware or any

other similar software or malware or programs that may damage the operation of another's computer or property of another; (e) delete any author attributions, legal notices or proprietary designations or labels that you upload to any communication device or feature; (f) use the Service's communication features in a manner that adversely affects the availability of its resources to other users (e.g., excessive shouting, use of all caps, or flooding continuous posting of repetitive text); (g) upload or transmit any unsolicited advertising, promotional materials, "junk mail," "spam," "chain letters," "pyramid schemes," "phishing" or any other form of solicitation, commercial or otherwise, or comments that drive traffic to a third party's Web site (including for personal, political, or monetary gain); (h) violate any applicable local, state, national or international law; (i) delete or revise any material posted by any other person or entity; (j) manipulate or otherwise display the Service by using framing, mirroring or similar navigational technology; (k) probe, scan, test the vulnerability of or breach the authentication measures of, the Service or any related networks or systems; (l) register, subscribe, attempt to register, attempt to subscribe, unsubscribe, or attempt to unsubscribe, any party for any services if you are not expressly authorized by such party to do so; (m) harvest or otherwise collect information about others, including email addresses; (n) use any robot, spider, scraper, or other automated or manual means to access the Service, or copy, download, distribute or reproduce any content or information on the Service; or (o) assist or permit any person in engaging in any of these activities.

Sips that Spike reserves the right to take whatever lawful actions it may deem appropriate in response to actual or suspected violations of the foregoing, including, without limitation, the suspension or termination of a User's access and/or account. Sips that Spike may cooperate with legal authorities and/or third parties in the investigation of any suspected or alleged crime or civil wrong.

Except as may be provided in the Privacy Policy or prohibited by applicable law, Sips that Spike reserves the right at all times to disclose any information as Sips that Spike deems necessary to satisfy any applicable law, regulation, legal process or governmental request, or to edit, refuse to post or to remove any information or materials, in whole or in part, in Sips that Spike's sole discretion.

Third-Party Goods and Services

Parties other than Sips that Spike, including Pharmacy, provide services or sell products through the Service (collectively, "Third-Parties"). Through the Service you may be able to purchase certain services, devices, items or products manufactured, distributed or sold by

Third-Parties ("Third-Party Goods and Services"). Your use of any Third-Party Goods and any interactions with Third-Parties, including payment and delivery of goods or services, and any other terms, conditions, warranties or representations associated with such use or interactions, are solely between you and such Third-Parties. You should undertake whatever investigation you feel necessary or appropriate before proceeding with any online or offline transaction involving Third-Parties or any Third-Party Goods and Services. You are solely responsible for, and shall exercise caution, discretion, common sense and judgment in, using the Service and disclosing personal information.

You agree that Sips that Spike shall not be responsible or liable for any loss or damage of any sort incurred as the result of your use of the Service, including any Third-Party Goods and Services or your interactions with any Third-Parties. In the event of any dispute between you and any Third-Party, any other User or any other entity or individual, you understand and agree that Sips that Spike is under no obligation to become involved in such dispute, and you hereby release and indemnify Sips that Spike, and its respective corporate parents, subsidiaries, and affiliates, and all of their respective contractors, directors, officers, employees, representatives, proprietors, partners, shareholders, servants, principals, agents, predecessors, successors, assigns, accountants, and attorneys (collectively, "Sips that Spike Parties") from any and all suits, claims, demands and/or damages (actual or consequential) of every kind or nature, known or unknown, suspected and unsuspected, disclosed or undisclosed, arising out of or in any way related to such disputes or the Service or the features and services therein. IF YOU ARE A CALIFORNIA RESIDENT, YOU WAIVE CALIFORNIA CIVIL CODE SECTION 1542, WHICH STATES: "A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS THAT THE CREDITOR OR RELEASING PARTY DOES NOT KNOW OR SUSPECT TO EXIST IN HIS OR HER FAVOR AT THE TIME OF EXECUTING THE RELEASE AND THAT, IF KNOWN BY HIM OR HER, WOULD HAVE MATERIALLY AFFECTED HIS OR HER SETTLEMENT WITH THE DEBTOR OR RELEASED PARTY."

Certain of Sips that Spike's members, directors, officers, employees, contractors or agents (collectively, "Sips that Spike Owners and Personnel") may have a financial interest in one or more Third-Parties and may profit from your use of the Third-Parties and/or the sale of Third-Party Goods and Services to you.

Terms of Payment

Only valid payment methods acceptable to us may be used to complete a purchase via the Service. You represent and warrant that you are authorized to use your designated payment

method. You authorize us to charge your designated payment method for the total amount of your order (including any applicable taxes and shipping and handling charges). If your designated payment method is declined, we will attempt to process your charge until the transaction is approved. We and our third-party payment service providers may request, and may receive, updated payment card information from your payment card issuer, such as updated card numbers and expiration date information when your credit card has expired. If such updated information is provided to us and our third-party payment service providers, you agree we may update your account information accordingly, and will use such updated information to process payments for your future purchases and applicable charges (including any applicable taxes, shipping, and handling charges). Your payment card issuer may give you the right to opt out of providing vendors and third-party payment service providers with your updated card information. If you wish to opt out of your payment card's updating service, you should contact your card issuer. We are not responsible for any fees or charges that your bank or payment card issuer may apply. If your bank or card issuer reverses a charge to your payment card, we may bill your account directly and seek payment by another method including a mailed statement.

If any of the products in your order is unavailable, we will only charge the prices, taxes and other applicable charges associated with the products that are included in the shipment. In connection with any purchase you make through the Service, you may be asked to supply certain information relevant to the transaction, including, without limitation, your payment card number, security code, and expiration date, your billing address, your shipping address, your phone number and/or your email address. By submitting such information, you grant Sips that Spike without charge the irrevocable, unencumbered, universe-wide, and perpetual right to provide such information (and any updated information we receive) to third parties (payment processing companies, e.g.) for the purpose of facilitating the transaction.

All credit card, debit card and other monetary transactions on or through the Service occur through an online payment processing application(s) accessible through the Service. This online payment processing application(s) is provided by Sips that Spike's third-party online payment processing vendor, Authorize.net. Additional information about Authorize.net, its privacy policy and its information security measures (collectively, the "Authorize.net Policies") should be available on the Authorize website located at https://www.authorize.net or by contacting Authorize.net directly. Reference is made to the Authorize.net Policies for informational purposes only and Authorize.net Policies are in no way incorporated into or made a part of this Agreement. Sips that Spike's relationship with Authorize.net, if any, is merely contractual in nature, as Authorize.net is nothing more than a third-party vendor to Sips that Spike and is in no way subject to Sips that Spike's direction or control; thus, their relationship is not, and should not be construed as, one of fiduciaries,

franchisors-franchisees, agents-principals, employers-employees, partners, joint venturers, or the like.

You agree to pay any shipping and handling charges, if any, shown at the time you make a purchase. We reserve the right to increase, decrease, and add or eliminate shipping and handling charges from time to time, but we will provide notice of the changes applicable to you before you make your purchase. Any delivery dates or times shown as part of the checkout process are estimates only and are not guaranteed. Unless we state otherwise in writing via the Service, risk of loss or damage to a product pass to you upon delivery of the product to our designated carrier.

We reserve the right to remedy User issues and concerns on a case-by-case basis. We reserve the right, in our sole discretion, to resolve customer issues and concerns based on the facts and circumstances of each User.

Termination

Clinical Services: With respect to clinical services, Sips that Spike may determine that it is necessary to terminate our relationship with you. Should that occur, we will give you notice, in writing, not less than thirty (30) days in advance of the date we will terminate our care, so that you will have a reasonable opportunity to identify a new provider. When you have done so, we will at your request provide a copy of your records to the new provider.

With respect to sales of products, as opposed to clinical care, Sips that Spike may terminate your use of the Service or any of our features or services at any time and for any reason without notice, including, for example, for conduct violating this Agreement, if our agreement with the Pharmacy terminates or if we discontinue sales of products through the Service. The provisions of this Agreement concerning Service security, prohibited activities, copyrights, trademarks, user submissions, disclaimers, limitation of liability, arbitration and resolution of Disputes, indemnity and jurisdictional issues shall survive any such termination or any other termination of this Agreement or your relationship with Sips that Spike. You agree that if your use of the Service is terminated pursuant to this Agreement, you will not attempt to use the Service under any name, real or assumed, and further agree that if you violate this restriction after being terminated, you will indemnify and hold all Sips that Spike Parties harmless from all liability that any such Sips that Spike Parties may incur with respect thereto.

DISCLAIMERS

Content and information contained on the Service is provided by Sips that Spike as a convenience. Users relying on Service content or other information from the Service do so at their own risk.

Sips that Spike does not provide legal advice. Sips that Spike is neither a lawyer nor a law firm. Sips that Spike does not practice law, nor seek to practice law. In providing this Agreement, Sips that Spike does not enter an attorney-client relationship with Users, or with anyone else, nor does it offer anyone legal advice. Users are advised to confer with competent counsel for legal advice concerning their use of the Service or any other legal matter. That Sips that Spike makes the Service available to Users does not mean that Sips that Spike asserts that Users may lawfully use it in their own or any jurisdiction for any purpose. A User's choice to access the Service is at his own initiative and his own risk and Users are responsible for compliance with all applicable laws.

THE SERVICE IS PROVIDED ON AN "AS IS" OR "AS AVAILABLE" BASIS. ANY ACCESS TO OR USE OF THE SERVICE IS VOLUNTARY AND AT THE SOLE RISK OF THE USER. Sips that Spike AND EACH THIRD-PARTY OFFERING PRODUCTS OR SERVICES THROUGH THE SERVICE, INCLUDING THE PHARMACY, TO THE FULLEST EXTENT PERMITTED BY LAW, DISCLAIM ALL WARRANTIES AND CONDITIONS OF ANY KIND, EITHER EXPRESS OR IMPLIED, STATUTORY OR OTHERWISE, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF MERCHANTABILITY, NON-INFRINGEMENT OF THIRD PARTIES' RIGHTS, SATISFACTORY QUALITY AND FITNESS FOR PARTICULAR PURPOSE WITH REGARD TO THE SERVICE, AND WITH RESPECT TO ANY INFORMATION, CONTENT, PRODUCT, SERVICE, MERCHANDISE OR OTHER MATERIAL PROVIDED ON OR THROUGH THE SERVICE. Sips that Spike DOES NOT WARRANT OR GUARANTEE THE ACCURACY, COMPLETENESS, RELIABILITY, TIMELINESS OR USEFULNESS OF THE SERVICE. Sips that Spike DOES NOT WARRANT THAT THE SERVICE WILL FUNCTION WITHOUT DELAYS, DISRUPTIONS, INTERFERENCES, IMPERFECTIONS, CORRUPTION, CYBER ATTACK, VIRUSES, MALWARE, OR ANY ADVERSE EFFECT OR INCIDENT.

Limitation of Liability

TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL Sips that Spike BE LIABLE TO YOU OR ANY OTHER PERSON OR ENTITY FOR ANY INCIDENTAL, INDIRECT, SPECIAL, EXEMPLARY OR CONSEQUENTIAL DAMAGES, PERSONAL OR BODILY INJURY, EMOTIONAL DISTRESS, OR WRONGFUL DEATH, LOSS OF DATA, LOST PROFITS, OR DAMAGES RESULTING FROM THE USE OF OR INABILITY TO USE THE SERVICE, INCLUDING ANY INFORMATION AND CONTENT MADE AVAILABLE THROUGH THE SERVICE OR ANY SERVICES PERFORMED OR PRODUCTS OFFERED BY THIRD-PARTIES, WHETHER BASED ON WARRANTY, CONTRACT, TORT (INCLUDING NEGLIGENCE), OR ANY OTHER LEGAL THEORY, AND WHETHER OR NOT Sips that Spike HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. Sips that Spike SHALL BE LIABLE ONLY TO THE EXTENT OF ACTUAL DAMAGES INCURRED BY YOU, NOT TO EXCEED ONE THOUSAND AMERICAN DOLLARS (U.S. $1,000.00.)

ANY CLAIMS ARISING IN CONNECTION WITH YOUR USE OF THE SERVICE OR ITS CONTENT MUST BE BROUGHT WITHIN ONE (1) YEAR OF THE DATE OF THE EVENT GIVING RISE TO SUCH ACTION OCCURRED. YOU UNDERSTAND AND AGREE THAT YOUR USE OF THE SERVICE OR ITS CONTENT IS PREDICATED UPON YOUR WAIVER OF ANY RIGHT TO PARTICIPATE IN A CLASS ACTION SUIT FOR ANY LOSSES OR DAMAGES RESULTING FROM YOUR USE OF THE SERVICE OR ITS CONTENT.

SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OF CERTAIN WARRANTIES OR THE LIMITATION OR EXCLUSION OF LIABILITY FOR INCIDENTAL OR CONSEQUENTIAL DAMAGES. TO THE EXTENT THAT WE MAY NOT DISCLAIM ANY IMPLIED WARRANTY OR LIMIT ITS LIABILITIES, THE SCOPE AND DURATION OF SUCH WARRANTY AND THE EXTENT OF OUR LIABILITY WILL BE THE MINIMUM PERMITTED UNDER APPLICABLE LAW.

Indemnification

You agree to defend, indemnify, and hold Sips that Spike Parties and any Third Parties offering products or services through the Service, including the Pharmacy, harmless from and against any and all suits, actions, claims, proceedings, damages, settlements, judgments, injuries, liabilities, obligations, losses, risks, costs, and expenses (including, without limitation, reasonable attorneys' fees and litigation expenses) relating to or arising from your use of the Service; your fraud, violation of law, or willful misconduct; or any breach by you of this Agreement or your violation of any rights of any other person or entity. We reserve the right to control the defense of any claim by a third-party for which we are

entitled to indemnification, and you agree to provide us with such cooperation as is reasonably requested by us.

Notices

Any notices to you from Sips that Spike regarding the Service or this Agreement may be made by email, a posted notice on the Service, or regular mail, in the sole discretion of Sips that Spike.

Electronic Communications

When you access or use the Service or send emails or SMS messages to us or your Providers, you are communicating with us and your Providers electronically. You consent to receive communications from us and your Providers electronically. We will communicate with you via email, SMS messaging or through the Service. You agree that all agreements, notices, disclosures, and other communications that we provide to you electronically satisfy any legal requirement that such communications be in writing. You further agree that any notices provided by us electronically are deemed to be given and received on the date we transmit any such electronic communication as described in this Agreement.

Binding Arbitration / Class Waiver

YOU AND WE EXPRESSLY AGREE THAT ANY LEGAL CLAIM, SUIT, DISPUTE OR OTHER CONTROVERSY BETWEEN YOU AND US OR ANY OF THE Sips that Spike PARTIES OR THE PHARMACY ARISING OUT OF OR OTHERWISE RELATING IN ANY WAY TO THE Sips that Spike PARTIES, THE SERVICE CONTENT OR THE SERVICE ITSELF, OR ANY OTHER GOODS, SERVICES OR ADVERTISING BY Sips that Spike OR ANY OF THE Sips that Spike PARTIES, OR THE PHARMACY, INCLUDING CONTROVERSIES RELATING TO THE APPLICABILITY, ENFORCEABILITY OR VALIDITY OF ANY PROVISION OF THIS AGREEMENT (COLLECTIVELY “DISPUTES”), SHALL BE RESOLVED IN CONFIDENTIAL BINDING ARBITRATION CONDUCTED BEFORE ONE COMMERCIAL ARBITRATOR FROM THE AMERICAN ARBITRATION ASSOCIATION (“AAA”), RATHER THAN IN A COURT, AS DESCRIBED HEREIN. THE ARBITRATION WILL BE GOVERNED BY THE AAA'S COMMERCIAL ARBITRATION RULES AND, IF THE ARBITRATOR DEEMS THEM APPLICABLE, THE SUPPLEMENTARY PROCEDURES FOR CONSUMER RELATED DISPUTES (COLLECTIVELY “RULES AND

PROCEDURES"). BY CLICKING ON THE BOX BELOW, YOU ACKNOWLEDGE THAT YOU ARE VOLUNTARILY AND KNOWINGLY FORFEITING YOUR RIGHT TO A TRIAL BY JURY AND TO OTHERWISE PROCEED IN A LAWSUIT IN STATE OR FEDERAL COURT, EXCEPT AS EXPRESSLY PROVIDED HEREIN.

Arbitration is more informal than a lawsuit in court. Arbitration uses a neutral arbitrator instead of a judge or jury, and court review of an arbitration award is very limited. An arbitrator, however, can award the same damages and relief on an individual basis that a court can award to an individual.

Payment of arbitration costs will be governed by the AAA's fee schedule, unless you are able to show that your portion will be prohibitive as compared to litigation costs, in which case the applicable Sips that Spike Party will pay as much of your arbitration costs as the arbitrator deems necessary to prevent the arbitration from being cost-prohibitive as compared to litigation costs. Sips that Spike also reserves the right in its sole and exclusive discretion to assume responsibility for all arbitration costs imposed by the AAA. Each party agrees to pay its own attorneys' fees and expenses unless there is a governing statutory provision that requires the prevailing party to be paid attorneys' fees and expenses. Notwithstanding the foregoing sentence, the Sips that Spike Parties will not seek to recover attorneys' fees or costs incurred in arbitration from you if you are a consumer.

The arbitration shall be conducted in Fairfax, Virginia unless the parties agree otherwise in writing. The arbitrator's award shall be final and binding on all parties and may be entered as a judgment in any court of competent jurisdiction.

For more information on AAA, its Rules and Procedures, and how to file an arbitration claim, you may call AAA at 800-778-7879 or visit the AAA website at https://www.adr.org.

Notwithstanding anything to the contrary herein, to the extent the Dispute arises from: (a) a violation of either party's intellectual property rights in any manner; and/or (b) any claim related to, or arising from, allegations of theft, piracy, unauthorized use or a violation of the Computer Fraud and Abuse Act, then you and the applicable Sips that Spike Party agree that a party may seek injunctive remedies (or an equivalent type of urgent legal relief) in a state or federal court in Northern Virginia, and both parties agree to submit to the personal jurisdiction of such courts in connection with such proceedings. In addition to the foregoing, either party may assert an individual action in small claims court for Disputes that are within the scope of such court's jurisdiction in lieu of arbitration as long as such action

remains in such court and advances only on an individual (non-class, non-representative) basis.

If a decision is issued stating that applicable law precludes enforcement of any of this paragraph's limitations as to a particular claim or request for relief, then such claim or request for relief (and only that claim or request for relief) shall be severed from the arbitration and may be brought exclusively in the state or federal courts located in Northern Virginia, subject to the parties' respective rights to appeal the decision. All other claims or requests for relief shall be arbitrated. The parties agree that no claims or requests for relief that are severed from an arbitration may proceed in litigation and shall be stayed until all claims between the parties remaining in arbitration are finally resolved. The parties agree to submit to the personal jurisdiction of the federal and state courts located in Northern Virginia, for purposes of resolving any claims or requests for relief severed from arbitration pursuant to this paragraph.

You can opt out of the provisions of this Agreement that require the arbitration of Disputes within 30 days of the date that you first agree to any version of this Agreement that requires arbitration of disputes with Sips that Spike or any of the Sips that Spike Parties, or the Pharmacy. To opt out, you must send your name, residence address, and email address together with a clear statement that you want to opt out of the requirement to arbitrate disputes with the applicable party to: Sips that Spike at P.O. Box 9143, Mclean Va 22102 or 6849 Old Dominion Dr. Suite 450, Mclean VA 22101

Before you commence arbitration of a Dispute, you must provide us with a written Notice of Dispute that includes your name, residence address, username (if applicable) and email address associated with your User account (if applicable), a detailed description of the Dispute, and the relief you seek. Before we commence arbitration of a Dispute against you, we will provide a written Notice of Dispute to you with a detailed description of the Dispute and the relief we seek. Any Notice of Dispute you send to us should be mailed to Sips that Spike at P.O. Box 9143, Mclean, Va. 22102 or 6849 Old Dominion Dr., Suite 450, Mclean, VA 22101. If we are unable to resolve a Dispute within 30 days after the applicable Notice of Dispute is received, either party may commence arbitration. Notwithstanding anything to the contrary in this Agreement, if we make any future material modification to any provisions of this Agreement that govern the arbitration or resolution of Disputes, such changes will not apply to any Dispute between you and us for which either party had previously provided a written Notice of Dispute to the other in accordance with this paragraph. Further, if we make any future material changes to the provisions of this Agreement that govern the arbitration or resolution of Disputes, you may reject such changes by sending a written notice of your rejection decision to us at Sips that Spike at P.O.

Box 9143, Mclean, Va. 22102 or 6849 Old Dominion Dr., Suite 450, Mclean VA 22101 within 30 days of the effective date of such modifications.

Governing Law; Venue; Severability of Provisions

This Service is controlled and operated by Sips that Spike from our offices within Virginia. Those who choose to access the Service from other locations do so on their own initiative and are responsible for compliance with local laws, if and to the extent applicable. Access to the Service from jurisdictions where the contents of the Service are illegal or penalized is prohibited.

The validity, interpretation, construction, and performance of this Agreement will be governed by the Federal Arbitration Act and the laws of the Commonwealth of Virginia without regard to any conflicts of law provisions.

All parts of this Agreement apply to the maximum extent permitted by law. Our failure to enforce any provision of this Agreement will not constitute a waiver of such right. You and we both agree that if Sips that Spike cannot enforce a part of this Agreement as written, then that part will be replaced with terms that most closely match the intent of the unenforceable part to the extent permitted by law. Except as otherwise provided in this Agreement, the invalidity of part of this Agreement will not affect the validity and enforceability of the remaining provisions. The section headings are for convenience and do not have any force or effect.

No Agency Relationship

Neither this Agreement, nor any content, materials or features of the Service, create any partnership, joint venture, employment, or other agency relationship between you and Sips that Spike or the Pharmacy. You may not enter into any contract on our behalf or bind us in any way. You may not enter into any contract on Pharmacy's behalf or bind Pharmacy in any way.

Assignment

You may not assign any of your rights under this Agreement, and any such attempt will be null and void. Sips that Spike may, in its sole discretion, assign or transfer, without further consent or notification, this Agreement or any or all of the contractual rights and obligations pursuant to this Agreement, in whole or in part, to any affiliate of Sips that Spike or to a third party in the event that some or all of the business of Sips that Spike is transferred to such other third party by way of merger, sale of its assets or otherwise.

Third Party Beneficiaries

Any use of third-party software provided in connection with the Service, or any Third-Party Goods and Services accessed or used in connection with the Service, will be governed by the applicable third-party's license or terms of use, if any, and if there is no such license or terms of use, by this Agreement. In addition to this Agreement, your use of the Service must comply with all applicable third-party terms of agreement, if any.

Except for the foregoing or as otherwise specifically set forth in this Agreement, including with respect to the indemnification obligations contained herein in favor of Sips that Spike or the Pharmacy and the agreement to arbitrate, we hereby expressly agree that there is no intent by either party to create or establish third-party beneficiary status rights or their equivalent in any other referenced individual, subcontractor or third party, and, except as specifically set forth in this Agreement, that no third party shall have any right to enforce any right or enjoy any benefit that is created or established under this Agreement.

Contacting Us

If you have any questions or concerns about this Agreement, please contact us by email at Orders@dermtodoor.com. We will attempt to respond to your questions or concerns with reasonable promptness after we receive them.

Entire Agreement

This Agreement and any other agreements Sips that Spike may post on the Service or that you and Sips that Spike may execute from to time constitute the entire agreement between Sips that Spike and you in connection with your use of the Service and supersede any prior agreements between Sips that Spike and you regarding use of the Service, including prior versions of this Agreement.

PRIVACY POLICY

Please read this policy carefully to understand Owner's policies and practices regarding User information and how Owner will treat it. If Users do not agree with our policies and practices, they should not download, register with, or use this Service. By downloading, registering with, or using this Service, the User agrees to this privacy policy. This policy may change from time-to-time. User's continued use of the Service after Owner make changes is deemed to be acceptance of those changes.

We at Sips that Spike intend to follow our Notice of Privacy Practices concerning the uses and disclosures of the confidential information you share with us. Our Notice of Privacy Practices has been provided to you and may be revised in the future.

We require that every patient use our secure video conferencing technology for telemedicine sessions. Our current system is reasonably secure and confidentiality-protective of the information transmitted. It is widely accepted for telemedicine use and provides more privacy and security protection for telemedicine services than do many other alternatives.

No electronic communication is entirely safe from intruders. The risks of using telemedicine services, email, SMS messages, and other electronic communications include the potential for unauthorized disclosure of your confidential information, including Protected Health Information as defined under the Health Insurance Portability and Accountability Act of 1996 (HIPAA), when it is transmitted between you and us. We take measures to protect your privacy, such as encrypting your data, employing password protected screen savers and data files, and utilizing other reliable authentication techniques. These features reduce the risk of a data breach, but do not eliminate them. You can help reduce the risk further.

You may be overheard by anyone near you if you are not in a private area during a telemedicine session. It is your responsibility to create an environment at your location for each telemedicine transmission, email, or SMS message that is private and protective of your personal information and communications with us. It is your responsibility to inform us if anyone else can see or hear any part of the session.

As part of its commitment to privacy, Sips that Spike does not record telemedicine sessions without the knowledge and consent of the patient. Sips that Spike also expects patients to refrain from recording or attempting to record sessions without its knowledge and consent.

General: Owner and its affiliates respect Users' privacy and are committed to protecting Users' privacy through compliance with this policy. No privacy policy is perfect, and Owner cannot and does not guarantee that a User's privacy will always be protected. In presenting this, its Privacy Policy, however, Owner intends that Users understand its approach to privacy protection. This policy describes:

The types of information Owner may collect or that Users may provide when Users register with, access, or use the Service.

Owner's practices for collecting, using, maintaining, protecting, and disclosing that information.

Children Under the Age of 18: The Service is not intended for children under eighteen (18) years of age, and Owner does not knowingly collect personal information from children under 18. If Owner learns that it has collected or received personal information from a child under 18, Owner will delete that information. Individuals who are 18 years of age or younger must leave this site now.

What Information Owner Collects and How Owner Collects It: Owner collects information from and about users of the Service:

When Users provide information directly.

Automatically when using the Service.

Information Users Provide to Owner: When Users download, register with, or use the Service, it may ask Users to provide information:

By which Users may be personally identified, such as name, postal address, email address or telephone number ("personal information").

That is about a User but individually does not identify Users' personal information, such as:

Information that Users provide by filling in forms within the Service. This includes: Information provided at the time of registering or subscribing to the Service, posting material, and requesting further services.

Users may also be asked for information when Users report a problem with the Service.

Records and copies of User correspondence (including email addresses and phone numbers).

Details of transactions Users carry out through the Service and in the fulfillment of User orders. Users may be required to provide financial information before placing an order through the Service.

User search queries on the Service.

Automatic Information Collection: When Users download, register with, or use the Service, it may use technology to automatically collect:

Usage Details. When Users access and use the Service, Owner may automatically collect certain details of User(s)' access to and use of the Service, including traffic data, location of data, logs, and other communication data and the resources that User(s) access and use on or through the Service.

Device Information. Owner may collect information about User's computer or mobile device and internet connection, including unique device identifiers, IP addresses, operating system information, browser type, network information, and telephone numbers.

Stored Information and Files. Owner may access and collect metadata and other information associated with other files stored on Users' computers or mobile devices. This may include, for example, photographs, audio and video clips, personal contacts, and address book information.

Clinical Decision Support Information. When Users are using the Service, Owner may automatically collect certain clinical and biometric information from Users to support clinical decision-making, provide more specialized care, and present Users with personalized clinical information.

Information Tracking Technology: The technology Owner may use for automatic information collection are:

Cookies. A cookie is a small file placed on Users' computers or mobile devices. It may be possible to refuse to accept mobile cookies by activating the appropriate setting on a computer or mobile device. If Users select this setting, however, they may be unable to access certain parts of the Service.

Facial Recognition Technology (FRT). Facial recognition technology utilizes software to map a person's facial characteristics and then store the data as a face template.

Third Party Information Collection: When using the Service or its content, certain third parties may use automatic information collection technologies to collect information about Users or their devices. These third parties may include:

Analytics companies.

Users' computer or mobile device manufacturers.

Users' internet or mobile service providers.

These third parties may use tracking technologies to collect information about Users of the Service. This may include information about Users' use of the Service and other apps and websites to serve them interest-based (behavioral) advertising. Owner does not control these third parties' tracking technologies or how they may be used.

How Owner Uses Collected Information: Owner uses information that it collects about Users or that Users provide to Owner, including any personal information, to:

Provide Users with the Service and its content, and any other information, products, or services that Users request from Owner.

Fulfill any other purpose for which Users provide it.

Give Users notices about their accounts.

Carry out Owner's obligations and enforce Owner's rights arising from any contracts entered between Users and Owner, including for billing and collection.

Notify Users when updates for the Service are available, of changes to any products or services Owner offers or provides though it, and to promote engagement.

The usage information Owner collects helps Owner to improve the Service and to deliver a better and more personalized experience by enabling Owner to:

Estimate the Service's audience size and usage patterns.

Store information about User preferences, allowing Owner to customize the Service according to Users' individual interests.

Speed up User searches.

Recognize Users when they use the Service.

Targeted Advertising Criteria: Owner may use the information it collects to display advertisements to its advertisers' target audiences. Even though Owner does not disclose Users' personal information for these purposes without their consent, if a User clicks on or otherwise interacts with an advertisement, the advertiser may assume that the User meets its target criteria.

Disclosure of User Information: Owner may disclose aggregated information about Users, and information that does not identify any individual or computer/mobile device, without restriction. Owner may disclose personal information that it collects, or Users provide:

To Owner's subsidiaries and affiliates.

To contractors, service providers, and other third parties Owner uses to support its business. Such entities, however, contract to protect Users' Protected Heath Information as that term is understood under HIPAA.

To a buyer or other successor in the event of a merger, divestiture, restructuring, reorganization, dissolution or other sale or transfer of some or all Owner's assets, whether as a going concern or as part of bankruptcy, liquidation, or similar proceeding, in which personal information held by Owner about Users of the Service is among the assets transferred.

To fulfill the purpose for which User provided it.

For any other lawful purpose disclosed by Owner when Users provide the information.

With User consent.

To comply with any court order, law, or legal process, including to respond to any government or regulatory request.

To enforce Owner's rights arising from any contracts entered between User(s) and Owner, including this Terms of Use Agreement, and for billing and collection.

If Owner believes disclosure is necessary or appropriate to protect the rights, property, or safety of Owner, its customers, or others. This includes exchanging information with other companies and organizations for the purposes of fraud protection and credit risk reduction.

Users' State Law Privacy Rights: Laws of the States of California, Colorado, and Utah, and of the Commonwealth of Virginia permit Users of the Service that are residents of those states to request certain information regarding the Owner's disclosure of personal information to third parties for their direct marketing purposes. To make such a request, please send an email to Orders@DermtoDoor.com] or [write us at: Sips that Spike, P.O. Box 9143, Mclean, VA 22102

Changes to Privacy Policy: Owner may update this Privacy Policy from time-to-time. If Owner makes material changes to how it treats Users' personal information, it will post the new privacy policy on this page. The date the Privacy Policy was last revised is identified at the top of the page. Users are responsible for periodically visiting this privacy policy to check for any changes.

Your Privacy Rights (Apple App Store & U.S. State Law Compliance)

Apple App Store Privacy Compliance (Guideline 5.1)

Sips that Spike complies with Apple App Store Review Guideline 5.1 and is committed to transparency, data minimization, and user control. We collect only the data necessary to operate the app, provide requested services, comply with legal obligations, and improve functionality. Data collected is not used for unrelated purposes without your explicit consent.

We do not sell user data. Any data shared with third-party service providers is limited to what is necessary to support app functionality, analytics, payment processing, or legal compliance, and is governed by contractual confidentiality and security obligations.

California Consumer Privacy Act (CCPA) & California Privacy Rights Act (CPRA)

If you are a California resident, you have the right to:
• Know what personal information we collect, use, disclose, or share
• Request deletion of your personal information
• Correct inaccurate personal information
• Opt out of the sale or sharing of personal information (we do not sell personal data)
• Limit the use of sensitive personal information
• Not be discriminated against for exercising your privacy rights

Requests may be submitted by emailing support@sipsthatspike.com.

Virginia Consumer Data Protection Act (VCDPA)

Virginia residents have the right to:
• Confirm whether we process your personal data
• Access, correct, or delete personal data
• Obtain a copy of personal data in a portable format
• Opt out of targeted advertising, profiling, or data sales

Requests can be made by contacting us at support@sipsthatspike.com.

Colorado Privacy Act (CPA)

Colorado residents have the right to:

- Access personal data we hold about you
- Correct inaccuracies
- Request deletion
- Opt out of targeted advertising, sale of personal data, or profiling

Requests will be honored in accordance with applicable law.